

Advisement of Rights, Enhancement, and Right to Counsel
Notification Form

05/13/2026 1:50 PM (MDT)



Full Name	Benjamin Schneider
Case Number	261000376
Address	[REDACTED]
City	los angeles
State	California
Zip/Postal Code	90029
Phone Number	[REDACTED]
Email	[REDACTED]
Date of Birth	[REDACTED]

YOU ARE REQUIRED TO NOTIFY THE COURT OF ANY ADDRESS
CHANGE WITHIN 48 HOURS

PLEAS:

- You may plead:
- a. Not guilty;
 - b. Not guilty by reason of insanity;
 - c. Guilty and mentally ill;
 - d. Guilty;
 - e. With the court's approval, no contest (a no contest plea means you do not challenge the charge; it is still a conviction).

Rights:

- 1. You have the right to counsel. Details concerning this right are covered on the third sheet of this form.
- 2. You have the right to speedy public trial before an impartial Jury. If you want a Jury trial, you must make a written demand at least 10 days prior to trial. You are not entitled to a jury trial if you are charged only with an infraction.
- 3. You have the right to confront and cross-examine the prosecution witnesses in open court.
- 4. You have the right to call witnesses and compel by subpoena their attendance and testimony. If you cannot afford to pay for the attendance of witnesses, the prosecution will pay those costs.
- 5. You have the right to testify on your behalf. Any statement you make may be used against you. You may refuse to testify, and no one can make you testify or give evidence against yourself. Your refusal to testify cannot be held against you.
- 6. You are presumed innocent until: a) you plead guilty or no contest; or b) the prosecution proves you guilty. The prosecution has the burden of proving each of the elements of the crime beyond a reasonable doubt. A Jury verdict must be unanimous.
- 7. You have the right to bail. If you post bail, you will be released on; a) the condition you appear in court for future proceedings; and b) any other conditions the court imposes. Bail may be modified on proper motion, notice and findings.

If you plead guilty or no contest these rights are waived, and your plea constitutes an admission of all the elements of the crime.

WITHDRAWAL OF PLEA/RIGHT TO APPEAL:

A motion to withdraw a guilty or no-contest plea must be made before you are sentenced or within 28 days of a plea held in abeyance. To withdraw your plea, you must show it was not knowingly and voluntarily made. The right to appeal is limited. If you choose to appeal, you must file a written Notice of Appeal within 28 days of the sentence or order from which you are appealing.

SENTENCING:

Sentencing will be imposed today (If you waived time for sentencing) or you have the right to return another day (within 2 to 45 days). Sentencing recommendations are not binding on the court. The court may order the sentence to run consecutively (one after the other) with the charges in this case and with any other case.

PENALTIES (MINIMUM / MAXIMUM SENTENCES):

- Class B Misdemeanor (0 days to 6 months jail, \$0 to \$1,940 fines and surcharges, plus interest);
- Class C Misdemeanor (0 days to 90 days jail, \$0 to \$1052.50 fines surcharges, plus interest);
- Infraction (no jail, \$0 to \$1052.50 fines and surcharges, plus interest).

I understand that if I am not a United States Citizen, my plea(s) today may, or even will, subject me to deportation under United States Immigration laws and regulations, or otherwise adversely affect my immigration status, which may include permanently barring my re-entry into the United States. I understand that if I have questions about the effects of my plea on my immigration status, I should consult with an immigration attorney.

Understand statement

- I have read and I understand the foregoing rights and instructions. I understand the charge(s) and penalties. Any plea I enter is voluntary and of my own free will and choice. No force, threats, or unlawful influence have been made to get me to plead.

Right to Counsel

1. **The Right to an Attorney.** You have been charged with the criminal offense(s) listed in the citation of information. You have the constitutional right to be represented by an attorney throughout all proceedings. If the offense is one for which the court may impose jail time – even suspended jail time – and you cannot afford an attorney, the court will appoint an attorney to represent you. You also have the right to represent yourself. At the end of this document you will choose how you would like to proceed at this time.
2. **If You Cannot Afford an Attorney.** If the charges include the potential for a jail sentence (i.e., any of the charges as a Class A, B, or C misdemeanor or felony charge) and you do not have enough income or assets to hire your own attorney, the court will appoint an attorney to represent you, unless you choose to represent yourself. Let the court know
3. if you would like to determine whether you qualify for a court-appointed attorney. If you do not meet the eligibility guidelines to have a court-appointed attorney, you still have the right to an attorney, but the attorney must then be retained at your own expense.
4. **The Right to Represent Yourself.** You also have the constitutional right to represent yourself and to proceed without an attorney. Before choosing this option, you should consider the following risks and responsibilities associated with self-representation:
 - Criminal defense is a highly specialized and technical area of the law.
 - A criminal conviction may result in consequences consisting of financial penalties and jail time.
 - There may be factual, legal, or other defenses to the charge(s) that an attorney may be able to discover and explain to you.
 - There may be issues related to the conduct of trial or the entering of a guilty plea that you may not know and it would be your attorney's responsibility to be aware of those issues and to properly address them before the court. The court cannot advise you on how to proceed with or try your case.
 - There may be collateral consequences based on a conviction or guilty plea, such as increased penalties for subsequent offenses, suspension of your driver's license, restriction of your right to possess firearms and ammunition, or consequences on your immigration status. An attorney could advise you about those consequences.
 - If you exercise your right to proceed without the service of an attorney, you are responsible for complying with the rules of court, including rules of evidence and other rules of procedure.
 - You will be expected to exhibit proper behavior before the judge and jury.
 - You will be required to pay for all defense expenses that could be provided as part of a public defender's representation, including the costs of investigators and expert witnesses.

- Given the above considerations, the court encourages you not to represent yourself.

Read and Indicate How You Will be Represented

I waive my right to be represented by an attorney, understanding, however that I have a right to request to be represented by an attorney at any time before a final resolution of my case(s).

I have read statement

- I state that I have fully and completely read this document regarding the right to counsel, and that I understand it (if you do not understand any of this document, you should appear before the judge in open court before signing it).

Defendant Signature

Date of Signature

05/13/2026

I agree to the Provo City Personal Data Policy

Yes

Version

Version 1.5

Effective Date

18 June 2025
